

# Consultation Reply Environment Agency

Environment Agency Kings Pool Peasholme Green, York, North Yorkshire, YO1 7PX. Customer services line: <redacted\_phone> [www.gov.uk/environment-agency](http://www.gov.uk/environment-agency) Cont/d.. <redacted\_name> Doncaster Metropolitan Borough Council Planning Services By email: <redacted\_email> Our ref: RA/<redacted\_date>/148932/01-L01 Your ref: 91.48267.FUL Date: <redacted\_date> Dear <redacted\_name> ERECTION OF STORAGE BARN – Roseacre House, Barnby Dun, Doncaster, ZZ38 5BX Thank you for consulting us on this application which we received on <redacted\_date>. <redacted\_name> Our <redacted\_name> Map for Planning shows the site lies within <redacted\_name> Zone 3, with a high probability of flooding from rivers and/or the sea. The application is for a non-residential storage building, which is considered to be a 'less vulnerable' land use in Annex 3 of the National Planning Policy Framework. It is therefore necessary for the application to pass the Sequential Test and to be supported by a site-specific <redacted\_name> assessment (FRA), which can demonstrate that the 'development will be safe for its lifetime taking account of the vulnerability of its users, without increasing <redacted\_name> elsewhere, and, where possible, will reduce <redacted\_name> overall'. <redacted\_name> Assessment An FRA by EWE Associates Ltd, reference <redacted\_date>/3111 Final Report RevB and dated <redacted\_date>, has been submitted in support of the application. Environment Agency position The proposed development will only meet the NPPF's requirements in relation to <redacted\_name> risk if the following planning condition is included. Condition The development shall be carried out in accordance with the submitted <redacted\_name> assessment by EWE Associates Ltd, reference <redacted\_date>/3111 Final Report RevB and dated <redacted\_date>, and the following mitigation measures it details: • Finished floor levels shall be set no lower than 5.90 metres above Ordnance Datum (AOD) as detailed in Section 5 of the submitted FRA • <redacted\_name> resilience and resistance measures shall be installed to a level of 500mm above finished ground floor levels • Flooding will not be increased off-site Cont/d.. 2 These mitigation measures shall be fully implemented prior to occupation and subsequently in accordance with the scheme's timing/phasing arrangements. The measures detailed above shall be retained and maintained thereafter throughout the lifetime of the development. Reasons • To reduce the risk of flooding to the proposed development and future occupants • To prevent flooding elsewhere INFORMATIVES <redacted\_name> resistance and resilience – advice to LPA/applicant We strongly recommend the use of <redacted\_name> resistance and resilience measures. Physical barriers raised electrical fittings and special construction materials are just some of the ways you can help reduce <redacted\_name> damage. To find out which measures will be effective for this development, please contact your building control department. If you'd like to find out more about reducing <redacted\_name> damage, visit the <redacted\_name> and Coastal Change pages of the planning practice guidance. Further guidance on <redacted\_name> resistance and resilience measures can also be found in: • Government guidance on <redacted\_name> resilient construction <redacted\_name> resilient construction of new buildings - GOV.UK • CIRIA Code of Practice for property <redacted\_name> resilience Code of practice for property <redacted\_name> resilience C790 • British Standard 85500 – <redacted\_name> resistant and resilient construction BS 85500:<redacted\_date> | <redacted\_date> | BSI Knowledge Signing up for <redacted\_name> warnings – advice to applicant The applicant/occupants should phone Floodline on <redacted\_phone> to register for a <redacted\_name> warning or visit Sign up for <redacted\_name> warnings - GOV.UK. It is a free service that provides warnings of flooding from rivers, the sea and groundwater, direct by telephone, email, or text message. Anyone can sign up. <redacted\_name> warnings can give people valuable time to prepare for flooding – time that allows them to move themselves, their families and precious items to safety. <redacted\_name> warnings can also save lives and enable the emergency services to prepare and help communities. For practical advice on preparing for a <redacted\_name>, visit Prepare for flooding: Protect yourself from future flooding - GOV.UK. To get help during a <redacted\_name>, visit What to do before or during a <redacted\_name> - GOV.UK. For advice on what do after a <redacted\_name>, visit What to do after a <redacted\_name> - GOV.UK. Sequential test - advice to LPA What is the sequential test and does it apply to this application? In accordance with the NPPF (paragraphs 175-177 (inc. footnote 62)), development in <redacted\_name> areas should not be permitted if there are reasonably available alternative sites, appropriate for the proposed development, in areas with a lower risk of flooding. The sequential test establishes if this is the case. Cont/d.. 3 Development is in a <redacted\_name> area if it is in <redacted\_name> Zone 2 or 3, or it is within <redacted\_name> Zone 1 and your strategic <redacted\_name> assessment shows it to be at future <redacted\_name> or at risk from other sources of flooding such as surface water or groundwater. The only developments exempt from the sequential test in <redacted\_name> areas are: • Householder developments such as residential extensions, conservatories, or loft conversions • Small non-residential extensions with a footprint of less than 250sqm • Changes of use (except changes of use to a caravan, camping or chalet site, or to a mobile home or park home site) • Applications for development on sites allocated in the development plan through the sequential test and: o the proposed development is consistent with the use for which the site was allocated; and o there

have been no significant changes to the known level of <redacted\_name> to the site, now or in the future, which would have affected the outcome of the test. • Developments where no built development within the site boundary, including access or escape routes, land raising or other potentially vulnerable elements, would be located on an area that would be at risk of flooding from any source, now and in the future. Avoiding <redacted\_name> through the sequential test is the most effective way of addressing <redacted\_name> because it places the least reliance on measures such as <redacted\_name> defences, <redacted\_name> warnings and property level resilience. Who undertakes the sequential test? It is for you, as the local planning authority, to determine an appropriate area of search and to decide whether the sequential test has been passed, with reference to the information you hold on land availability. You may also ask the applicant to identify any other 'reasonably available' sites which are on the open market and to check on the current status of identified sites to determine if they can be considered 'reasonably available'. Further guidance on the area of search can be found in paragraphs 027-030 of the planning practice guidance here. What is our role in the sequential test? We can advise on the relative <redacted\_name> between the proposed site and any alternative sites identified - although your strategic <redacted\_name> assessment should allow you to do this yourself in most cases. We won't advise on whether alternative sites are reasonably available or whether they would be suitable for the proposed development. We also won't advise on whether there are sustainable development objectives that mean steering the development to any alternative sites would be inappropriate. Further guidance on how to apply the sequential test to site specific applications can be found in the planning practice guidance: here. We have not objected to this application on <redacted\_name> grounds, but this does not remove the need for you to apply the sequential test and to consider whether it has been satisfied. Where a <redacted\_name> assessment shows the development can be made safe throughout its lifetime without increasing risk elsewhere, there will always be some remaining risk that the development will be affected either directly or indirectly by flooding. A failure to satisfy the sequential test can be grounds alone to refuse planning permission. If you need any clarification or further information, please contact us. End 4 Yours sincerely <redacted\_name> Sustainable Places - Planning Advisor Direct e-mail <redacted\_email> Team e-mail <redacted\_email>